



Appeal Decision

Site visit made 7 September 2026

by **B Plenty BSc (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6009997

Erith Cottages, Main Road, Lacey Green, HP27 0QN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Dell, of Dell Brothers Ltd, against the decision of Buckinghamshire Council.
 - The application Ref is 24/07369/FUL.
 - The development proposed is Erection of 4no. detached dwellings.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The revised National Planning Policy Framework (the Framework) was published in August 2026. Main parties have been provided with the opportunity to comment on the implications of the revisions to their cases. I have taken account of the revised Framework, and any comments made, in my determination of the appeal.
3. Upon review of the Framework the Council finds that the proposal would be regarded as Grey Belt and would comply with the Framework's policy GB7(1)(g). As such, it no longer seeks to defend Reason for Refusal 1. Based on my own assessment of the evidence, I see no reason to disagree with this view and shall therefore consider this matter as having been addressed.
4. The appeal site is within the Chilterns National Landscape (NL). Section 85 of the Countryside and Rights of Way Act 2000 (as amended)(the CRoW Act) required decision makers to have regard to the purpose of conserving and enhancing the natural beauty of the area. Since 2023, Section 245 of the Levelling-Up and Regeneration Act (LURA) amended the duty on relevant authorities in respect of their interactions with statutory purposes of Areas of Outstanding Natural Beauty (AONBs – now NLs), as set out in The CRoW Act. In so far as it relates to this appeal, the amendment now requires relevant authorities "must seek to further the purpose of conserving and enhancing the natural beauty of the AONB".

Main Issues

5. The main issues are:
 - The effect of the proposal on highway safety, with respect to internal manoeuvring space for large vehicles, visibility at access and the extent of parking provision,

- Whether the proposal would result in the loss of a business use and if so the policy implications of this,
- The effect of the proposed development on the Character and appearance of the site and its surroundings, with particular regard to its effect on the Chilterns National Landscape, and
- Whether the proposal would provide adequate living conditions for future occupiers with particular regard to bin storage for future occupiers of plots 3 and 4.

Reasons

Highway safety

Parking provision

6. The proposed scheme indicates parking provision for 12 vehicles. The Council's parking guidance [2015] requires, at table 6 (for residential schemes up to 10 dwellings), that 1-5 habitable rooms/ 1-2 bedroom should have 2 spaces, 6-7 habitable rooms/3-4 beds should have 3 spaces, 8+ habitable rooms/5 beds should have 4 spaces. However, it also states that the car parking standards are optimum standards, where the required level of parking should be provided unless specific local circumstances can justify deviating from them. Based on the guidelines, main parties agree that the proposed plots would provide a shortfall of around 2 spaces. As such, on-plot parking could well be insufficient, resulting in some modest overspill parking.
7. However, the site layout includes an extremely long access road, serving the four plots, which would be 5.5m wide. This would both allow opposing vehicles to pass safely, and to accommodate ad hoc parking without interrupting the free-flow of traffic within the small estate. Accordingly, I find it would be highly unlikely that overspill parking on the access road would occur close enough to the site access to prevent vehicles from entering and exiting the site in an efficient manner or occur on Main Road. As such, adequate space would exist within the site to accommodate any overspill parking requirement on site. This would prevent overspill parking onto Main Road and prevent the creation of any significant adverse impacts on the public highway, justifying deviation from the required standards. As such, the proposal would comply with the Council's Countywide Parking Guidance Policy [2015].

Turning for large vehicles

8. The appellant's updated layout plan, and turning head diagrams, show the turning arc for a fixed base large vehicle, such as a fire tender or bin lorry, within the site. This illustrates how such vehicles could enter and leave the site in a forward gear.
9. The tracking details demonstrate how a large vehicle would manoeuvre within the site, but do not show movements around the access into and out of the site. However, the access does not create a particular pinch-point that might make manoeuvring in and out of the site hazardous to highway safety in geometry terms. As such, I find the submitted details to be sufficient to demonstrate that a large vehicle could manoeuvre through the site safely.

Visibility splays

10. Main Road is subject to a 30mph speed restriction passing the site. The Council identify that the existing use would generate 4 vehicle movements a day compared to the proposed use which would generate around 20 movements. This would therefore result in an intensification of the use of the access, albeit modest, of the current access. Consequently, despite the site being served by an established existing access, it is necessary for the proposal to demonstrate that safe access can be provided for the proposed use.
11. Main Road curves in front of the appeal site, providing restrictive views along the highway in both directions for emerging vehicles. The access onto Main Road would be on the northern side of the site's frontage. A footpath runs in front of the site which appears to be around 1.5m wide. The appellant's layout plan shows a 2.4m by 43m visibility splay at the access onto Main Road.
12. To the southeast boundary of the site a post and rail fence can be seen on the shared boundary with 2 Erith Cottages. The appellant's updated location plan demonstrates that the adjacent properties of 'Robmau' and 1 and 2 'Erith cottages' are also under the appellant's ownership. The visibility splay to the southeast, would include land in front of 2 'Erith Cottages', currently bound by a post and rail wooded fence. The fence obstructs distant views of approaching vehicles within the visibility splay. Nonetheless, the provision of an acceptable southeast visibility splay could be secured through the imposition of a condition, requiring the view to be unimpeded by the fence.
13. The northwest site boundary consists of a hedge which runs alongside the access to the Old Methodist Chapel's access road. The appellant asserts that the visibility splay does not encroach onto land under the ownership of the neighbouring plot. However, and despite the appellant's assertion, it appears that the visibility splay would require some third-party land, occupied by the hedge, to function properly as demonstrated by the Highway Authority.
14. Due to the proximity of the hedge and the curvature of the road, views for motorists exiting the site and looking northwest would be substantially compromised. This would be further compromised should the owners of the adjacent land chose to change the front boundary details of their plot in the future, beyond the control of the appellant. This therefore raises concern as to the safe use of the access, for future residential occupiers and larger delivery/service vehicles. As a result, the appellant has failed to demonstrate how a suitable visibility splay can be achieved without crossing third party land.
15. Consequently, whilst the scheme would include sufficient parking and manoeuvring space for a large vehicle it has not been demonstrated that it would provide a safe means of access for emerging vehicles, resulting in a significant adverse highway safety impact.
16. As such, the proposal would conflict with LP policy DM33, the Council's Local Transport Plan [2016], the Highways Development Management Guidance document [2018] with respect to matters of highway safety. These seek, among other matters, for development to provide safe and convenient access to the local highway.

Effect on any on-site business

17. The appeal site includes an existing building, and waste material is noted as being stored in various locations around the building. The appellant notes that the site includes extensive areas of surface infrastructure, which I take to refer to hardstanding, and related open storage. During my site visit the site appeared unkempt and unused with evidence of some historic storage of building materials but this seemed low-key and subtle.
18. The Council identify the site is occupied by a builder's yard, and therefore an employment use, that policy DM5, of the Site and Allocations Plan [2013](SAP), seeks to retain. This policy seeks to retain scattered business sites and to only allow their redevelopment if it can be demonstrated that its use is no longer practicable to be retained in an employment related use. This requires the site to be marketed for a sufficient period of time, at a reasonable price for employment use and be unencumbered by any sales agreement that favours redevelopment. However, the appellant asserts that the site is not a builder's yard.
19. During my visit I saw no clear evidence that an active business, of even small scale, was taking place on site or had recently taken place. The Planning history, within the officer's report demonstrates that site was subject to planning permission for a builder's yard and shed in the 1950's. However, without more contemporary planning history it is unclear how the site has been used for the last 75 years. Ariel photographs, provided by the Council at appendix D, do not provide much greater clarity on this matter, simply showing that the site has been used in the past for the ad hoc storage of materials. I also note that the Council has provided the trade details of 'Dell Bros' but this does not demonstrate that the site has been used as a builder's yard. I therefore do not find the site to be a scattered business site where SAP policy DM5 would be engaged. As such, this policy weighs neither for nor against the proposal.

Character and appearance

20. Main Road predominantly consists of two-storey houses and dormer bungalows of various sizes and traditional styles. The settlements of Looseley Row and Lacey Green are linear in form, with several small spurs of housing standing within modest housing estates, off each settlement's main roads. The appeal site is formed by several parcels consisting of both residential gardens and the existing builder's yard and is a narrow, linear plot in the centre of Lacey Green. Due to its rather untidy state, the site makes a neutral contribution to the character and appearance of the area.
21. The proposed scheme consists of four dwellings, which are two-storey with pitched roofs. Having a traditional design and being set within generous plots, the design and general space around the dwellings would complement the general style and density of local development. Furthermore, being linear in form, the proposal would create a new cul-de-sac, similar to other spurs of development seen locally along Main Road.
22. Plot 4 would be occupied by a relatively large two-storey dwelling, with rooms in its pitched roof. It would be within a large plot, with sizeable garden areas, especially to its rear. As a result, the dwelling would not appear cramped or out of place within its plot and would have no adverse effect on the streetscene. It would be at the end of the new roadway and separated visually from plots 1, 2 and 3.

Nonetheless, as backland development it would be within an area with a dispersed pattern of development where other neighbouring plots also consist of backland sites and small spurs of development. As a result, the dwelling would be characteristic of the area, relating well to the surrounding pattern of development.

23. The Council assert that the proposed dwellings would be likely to be visible from footpaths LAG/4/1, LAG/4/2 and LAG/8/3, the locations of which are shown at figure 1 of the appellant's Statement of Case. These routes are set away from the site, with LAG/8/3 the closest running to the west of the site. Nonetheless, I found the site to be only partially visible from nearby footpaths with dense surrounding vegetation. As such, the proposed dwellings would only be seen in glimpsed views amongst the existing built form of surrounding development, causing no material adverse visual effect for users of the footpaths.
24. With regards to the NL, the site forms part of the Walter's Ash and Naphill Settled Plateau typology (LCT 16.2) of the Council's Landscape Character Assessment (2011). Its characteristics include that it contains elevated, gently undulating plateau of chalk overlain by clay flints, consists of a mosaic of arable fields, rough grazing and paddocks defined by hedgerows and rural fencing.
25. The valued attributes of the relevant NL include special qualities as having areas of flower-rich downland, broadleaved woodlands, commons, tranquil valleys, the network of ancient routes, villages with their brick and flint houses, globally rare chalk streams and a rich historic environment of hillforts and chalk figures. The Chilterns has areas of tranquillity and remoteness along with visually sensitive skylines, geological and topographical features as which contribute towards making this a special landscape. Being within a settlement and surrounded by buildings of various styles and ages, the special qualities of the NL would be unaffected by the development. As such, it would not cause harm, through the introduction of additional built form within the settlement, to its associated attributes.
26. Accordingly, the proposal would be of an appropriate scale and design in consideration of the surrounding area and not result in over-development. It would therefore complement the character and appearance of the area and would not cause harm to the NL. The proposal would therefore comply with LP policies CP9, DM30, DM32 and DM35 and the Council's Residential Design Guide SPD [2017]. These seek, among other matters, for development to create attractive buildings and space, provide a positive response to its context and conserve the natural beauty of the Chilterns AONB. Also, having a neutral effect on the NL, the appeal proposal would conserve its beauty, in accordance with the promotion of the statutory purposes of conserving and enhancing the NL's natural beauty as required by the CRoW Act.

Living conditions of future occupiers, regarding waste management

27. The Council's Waste Management Planning Guide directs applicants to Part H of the Building Regulations, with respect to waste management requirements, and explains container dimensions for waste receptacles. The guidance identifies, for private roads, that a collection point should be provided where the private road meets the public highway. This presents the Council's preferred method for waste collection for a private road, such as seems to be proposed for this scheme.

28. The Council asserts that plots 3 and 4 would have inadequate provision for waste and recycling facilities due to bin travel distances. It has referred to the requirements of Building Regulations. This identifies that householders should not be required to carry refuse more than 30m from their home and that containers should be within 25m of the waste collection point specified by the waste collection authority. However, the Framework is clear that matters which are controlled by separate regulatory regimes may only be a material consideration where they have land-use implications, which is not relevant in this case. It states that decision-makers should assume that, unless there is clear evidence to the contrary, those separate regimes will operate effectively.
29. The proposal has adequate space along the roadway to accommodate refuse collection points that may be required by the Council. Furthermore, if not suitable to the Council, refuse could be collected by a private contractor in small vehicles which could enter the site. In either event, the details of a suitable refuse collection strategy could be adequately addressed by the imposition of a condition.
30. Accordingly, the proposal would be capable of accommodating suitable refuse facilities to enable the scheme to function well and prevent adverse effects to the living conditions of future occupiers. As a result, the proposal would comply with LP policies DM20, DM33 and DM35 and the Council's Residential Design Guide SPD [2017] with respect to refuse collection. These include the requirement for development to take a comprehensive approach to site layout and design.

Planning balance

31. I have concluded that the proposal would conflict with development plan LP policy DM33 and the associated supplementary planning documents concerned with highway safety and would conflict with the development plan when taken as a whole. Planning law requires that applications for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise.
32. The National Planning Policy Framework (2026), at policy H07, requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community. This is especially pertinent in a district where the Council is not meeting its required 5-year supply of housing land, with a provision of only 1.98 years.
33. Furthermore, Policy S03 of the Framework applies a presumption in favour of sustainable development. Policy S04, for development within a settlement, states that such development should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies of the Framework.
34. The proposal would deliver some modest economic benefits during construction and where future occupiers would spend in the area. The scheme would also aid in social cohesion to the local village to a moderate extent.
35. The appeal site is within a settlement, and the proposal would provide infill development for 4 dwellings in an accessible location, making use of underutilised land in an efficient manner at an appropriate density. The site is within walking distance of bus stops, that serve a high frequency service between High Wycombe

and Aylesbury located around 65m and 155m north of the site respectively. These sustainable locational benefits of the site are consistent with the Framework which seeks development to support sustainable patterns of movement, enabling good accessibility for different users and make the most of existing and proposed transport infrastructure. Furthermore, the proposed dwellings would provide accommodation of an acceptable size to meet the Council's internal and external size requirements.

36. Nonetheless, the proposal would use an access that has not been shown to be able to be used in a safe manner, increasing the risk of accidents in the area and causing a significant adverse impact to highway safety. This would therefore fail to comply with policy TR6 (4) of the Framework which states that development proposals should be refused if it would have an unacceptable impact on highway safety. The proposal would also fail to accord with policy TR3(1)(c) which states that any significant adverse impacts from the development on the transport network, or on highway safety, should be mitigated to an acceptable degree using a vision led approach. Furthermore, the scheme would not allow for the efficient delivery of goods, and ease of access by service and emergency vehicles, in ways which do not compromise key place-making principles in conflict with policy TR4(1)(d) of the Framework.
37. In this instance, the benefits of the proposed development, would be substantially outweighed by the identified adverse effects of the proposal, when assessed against the national decision-making policies of the Framework as a whole. As such the presumption in favour of sustainable development would not apply. Accordingly, the identified conflict with the development plan would not be outweighed by material considerations, including the Framework.

Conclusion

38. For the above reasons the appeal is dismissed.

B Plenty

INSPECTOR